

24VECV04937 24VECV04937

County: los-angeles

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Case Number: 24VECV04937 Hearing Date: September 2, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ESTER ASATRYAN, an
individual,

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC; SHERMAN
OAKS-B, INC. n d/b/a LITHIA BMW OF SHERMAN OAKS; and DOES 1 through 10,
inclusive.

Defendants.

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CASE NO.: 24VECV04937

ORDER

GRANTING IN PART DEFENDANT BMW OF NORTH AMERICA, LLC'S MOTION TO TAX COSTS

I.

BACKGROUND

This action

arises out of Plaintiff Ester Asatryan's ("Plaintiff") October 4, 2023, lease of a 2024 BMW iX (the "Subject Vehicle"). (See Complaint, ¶ 9.) At the conclusion of trial on Plaintiff's Song-Beverly action, the jury found in favor of Plaintiff as to her breach of implied warranty claim and awarded her \$10,000.00 as restitution.

BMW now moves to tax costs.

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II.

PROCEDURAL

HISTORY

On October 8, 2024, Plaintiff filed a Complaint against Defendants, alleging negligent repair and violations of Civil Code §§ 1791.1, 1791.2(a), 1793.2(a)(3), 1793.2(b), 1793.2 (d), and 1794 of the Song-Beverly Act.[1]

Ultimately, Plaintiff only submitted her breach of express and implied warranty claims against BMW to the jury. On March 30, 2026, the jury found in favor of Plaintiff only as to her breach of implied warranty claim, awarding her \$10,000.00 as restitution.

On June 15, 2026, the Court entered the Judgment on Special Verdict against Defendants in the amount of \$10,000 plus prejudgment interest in the amount of \$1,476.721, for a total recovery of \$11,476.72.

On August 11, 2026, BMW filed the instant Motion.

On August 17, 2026, Plaintiff filed an Opposition.

On August 21, 2026, BMW filed a Reply.

III.

LEGAL STANDARD

The Song-Beverly Consumer Warranty Act authorizes recovery of costs “reasonably incurred by the buyer.” (Civ. Code § 1794(d).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs.” (*Id.*)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Rules of Court, rule 3.1700(a)(1).)

“If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. [citations.] The burden then shifts to the objecting party to show them to be unnecessary or unreasonable.” (Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 693.) “In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable.” (Foothill De Anza Cmty. College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 2930.) “Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court.” (Ladas v. Cal. State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [citation.] However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

IV.

TIMELINESS

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost

memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4)." (Rules of Court, rule 3.1700(b)(1).)

"The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs...In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days." (Id., rule 3.1700(b)(3).)

Plaintiff

argues BMW's Motion is untimely, as BMW's deadline to file the instant motion was July 17, 2026. (See Opp. at 3:21-25.) Plaintiff argues the parties did not agree to extend the time for serving and filing a motion to strike or tax costs pursuant to rule 3.1700(b)(3). (See id., at 4:3.)

BMW acknowledges

that it filed its Motion outside the specified period under rule 3.1700(b)(1). BMW argues the Court should exercise its discretion to extend the time for filing the instant Motion pursuant to rule 3.1700(b)(3) as it was filed within 30 days of the original deadline. (See Reply at 2:3-10.)

The Court

will exercise its discretion to consider this Motion. BMW filed its Motion on July 31, 2026, 14 days after its original deadline. Because the Motion's filing date does not exceed the additional 30-day period specified in rule 3.1700(b)(3), the Court will consider the Motion.

V.

ANALYSIS

A.

Item 8: Witness Fees

Code of Civil

Procedure provides the following are expressly allowable costs, "Fees of expert witnesses ordered by the court." (Code Civ. Proc. § 1033.5(a)(8).) "In a claim under the Song-Beverly Act, a prevailing plaintiff is entitled to recover costs

and expenses (Civ. Code, § 1794, subd. (d)); for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5." (Smalley v. Subaru of America, Inc. (2022) 87 Cal.App.5th 450, 457; see Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 42-43.)

BMW argues \$4,775.00

in expert witness paid to Gabriel Paredes should be stricken because the Court barred him from testifying after BMW objected to his designation on grounds that he previously worked on this matter as BMW's employee. (See Mot. at 4:21-5:2 citing Baker-Hoey v. Lockheed Martin Corp. (2003) 111 Cal.App.4th 592, 600.)

Plaintiff

argues Civil Code §

1794(d) allows prevailing plaintiffs to recover reasonable expenses incurred beyond the allowable costs provide for in Code of Civil Procedure § 1033.5. (See Opp. at 4:9-17.) Plaintiff contends the expense was reasonably incurred as Mr. Paredes was present for trial on two days and was prepared to offer rebuttal testimony. (See Opp. at 4:18-25.)

In reply, BMW

argues Plaintiff knew of Mr. Paredes' prior involvement in this action and nevertheless refused to withdraw his designation. BMW argues under those circumstances, Plaintiff has not shown that the costs incurred in connection with Mr. Paredes were reasonably necessary. (See Reply at 4:7-11.)

The Court

will strike costs of \$4,775.00 from item 8. The Court agrees with BMW the expert witness fees paid to Mr. Paredes were not reasonably incurred due to Plaintiff's knowledge of Mr. Paredes' employment with BMW. Plaintiff doesn't dispute at the time she incurred this cost she was unaware of this basis for BMW's objection.

Thus, the

Court GRANTS BMW's Motion as to item 8 in the amount of \$4,775.00.

B.

Item 15: Other

"Costs are

allowable if incurred, whether or not paid.” (Code Civ. Proc. § 1033.5(c).) “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation...Items not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” (Id., § 1033.5(c)(1)-(4).)

BMW moves to

strike \$650.00 from item 15 for a cancellation fee for a vehicle inspection that ultimately did not occur. (See Opp. at 5:13-18.) BMW also moves to strike \$5,344.69 in costs from item 15 for travel expenses attributable to Ryan Baggs. (See Mot. at 5:20.) BMW argues Mr. Baggs incurred two hotel lodging invoices for the same date. (See id., at 6:1.) BMW also argues Mr. Baggs’ dining expenses were excessive, averaging \$56.47 per meal, including one breakfast on March 22, 2026, for \$78.92. (See id., at 6:3-5.)

Plaintiff

argues on February 27, 2026, at the FSC, the Court directed counsel to confer on a date for the vehicle inspection. Plaintiff offered and booked March 3, 2026, with their expert. (See Opp. at 5:7-12.) Plaintiff contends the inspection was cancelled the day of, and her expert had already begun traveling before receiving the cancellation notice. (See id., at 5:13-18.) Plaintiff argues Mr. Baggs traveled from San Diego to staff a multi week jury trial. (See id., at 5:26-27.) Plaintiff argues Mr. Baggs incurred two hotel fees for the same day (the Hilton night for \$418.00 and the Hampton night for \$281.41) because he was required to switch hotels at midnight after trial was extended and there was no availability for rooms at his initial hotel. (See id. at 6:3-17.) Plaintiff argues the proper remedy would be to strike the cost of a single room, not both. (See id.) Plaintiff further argues that Mr. Baggs averaged \$56.47 per day, which is less than the federal per diem rate for meals and incidental expenses in Los Angeles County. (See id., at 6:18-24.) Plaintiff also adds BMW does not identify any specific meal charge aside from the breakfast charge on March 22, 2026. (See id., at 6:23-7:3.)

BMW

does not address the vehicle inspection cost in reply. Instead, BMW argues it should not pay for both rooms. (See Reply at 4:25-26.) BMW argues the attached Hilton invoice notes arrival on March 22, 2026, at 11:36 a.m. and departure on March 26, 2026, at 1:53 p.m. while the Hampton invoice notes arrival on March 25, 2026, at 11:29 p.m. and departure on March 28, 2026, at 12:47 p.m. (See id., at 5:7-12.) BMW further argues the opposition does

not prove that each meal charge was reasonably necessary, reasonable in amount, or properly documented, including the \$78.92 breakfast charge. (See id., at 5:13-20.)

The

Court declines to strike \$650.00 from item 15 for a cancellation fee incurred in connection with the cancelled vehicle inspection, as the Court finds this was a reasonably incurred cost. (See Civ. Code. § 1794(d).) The Court will, however, strike \$281.41 for the Hampton invoice incurred on March 25, 2026, as Mr. Baggs was still lodged at the Hilton on this night. (See Memorandum of Costs at 21 [check out date 3/26/26 1:53 p.m.].) Lastly, as BMW only identifies the March 22, 2026, breakfast charge for \$78.92 as excessive, the Court agrees this charge was excessive and strikes it. (See id., at 20.)

Thus,

the Court GRANTS BMW's Motion to strike \$360.33 from item 15.

In sum, the

Court GRANTS in part BMW's Motion to Tax Costs in the total amount of \$5,135.33.

VI.

CONCLUSION

Based on the

foregoing, the Court GRANTS in part BMW's Motion to Tax Costs in the total amount of \$5,135.33. Plaintiff shall recover \$16,103.46 in costs.

IT

IS SO ORDERED.

DATED: August 28, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California authority unless stated otherwise.